

		The Plaintiff is ordered to provide notice of the Court's ruling.
12	30-2026-01553559 Yamtoobian vs. Lawrence	The Court has read and considered the Defendant's Motion to Set Aside (ROA 29), Defendant's Declaration (ROA 35), Plaintiff's Opposition (ROA 37), and Plaintiff's Request for Judicial Notice (ROA 39). The Court takes Judicial Notice of the CP10.5 Prejudgment Claim of Right to Possession Form, Request to Waive Court Fees (ROA 13), Request for Entry of Default (ROA 17), Notice of Change of Address or Other Contact Information (ROA 27), Proof of Service of Summon & Complaint – Unnamed Occupants (ROA 26), Proof of Service of Summons (ROA 24), and Order to Service Summons by Posting (ROA 21). The Prejudgment Claim of Right to Possession Form states as follows: "9. I understand that if I make this claim of possession, I will be added as a defendant to the unlawful detainer (eviction) action. 10. (<i>Filing Fee</i>) I understand that I must go to the court and pay a filing fee of \$ _____ or file with the court an "Application for Waiver of Court fees and Cost." ... 12. I understand that I will have <i>five days</i> (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form." Angelina Anderson filed a Prejudgment Claim of Right to Possession form with the Court on March 27, 2026, and was added as a defendant to this action. On the same date, Ms. Anderson filed a Request to Waive Court Fees with the Court. On April 8, 2026, Plaintiff's Counsel mailed Ms. Anderson a copy of the Request for Entry of Default (ROA 17). On May 7, 2026, Ms. Anderson filed a Notice of Change of Address or Other Contact Information with the Court. A party appearing in propria persona does not provide a basis for special treatment under the law; "such a party is to be treated like any other party and is entitled to the same but no greater consideration than other litigants and attorneys." (<i>Barton v. New United Motor Manufacturing, Inc.</i> (1996) 43 Cal.App. 4th 1200, 1210.) Additionally, the Court of Appeal held that a litigant in propria persona is subject to the same restrictive procedural rules as an attorney. (<i>Kabbe v. Miller</i> (1990) 226 Cal.App. 3d 93, 98.) Ignorance of the law or a party's failure to exercise reasonable diligence generally does not constitute "excusable neglect" within the meaning of California Code of Civil Procedure section 473(b). Here, Defendant asserts that she "did not understand that I was required to respond within a shortened timeframe." However, the Prejudgment Claim of Right to Possession form expressly states in section 12: "I understand that I will have five days (excluding court holidays) to file a response to the Summons and Complaint after I file this Prejudgment Claim of Right to Possession form." Under these circumstances, Defendant's asserted misunderstanding of the response deadline does not establish excusable neglect. The Court DENIES the Defendant's Motion to Set Aside. The Writ of Possession is to issue forthwith. The Plaintiff is ordered to provide notice of the Court's ruling.

14	30-2026-01554359 Korth Family Limited Partnership vs. Zarate	The Court has read and considered the Plaintiff's Motion for Summary Judgment (ROA 47). A judge properly grants summary judgment when there are no triable issues of material facts and judgment is warranted as a matter of law. (California Code of Civil Procedure § 437c(c); <i>Bailey v. San Francisco District Attorney's Office</i> (2024) 16 Cal. 5th 611, 620.) The Plaintiff has the burden of establishing an unlawful detainer action for non-payment of rent pursuant to CCP 1161(2). Here, the Plaintiff established that it properly served a 3-day Notice to Pay or Quit on the Defendants on 3/5/2026, and the Notice to Pay or Quit contained all the required elements under CCP § 1161(2). The burden then shifts to the Defendants to establish any affirmative defenses to the unlawful detainer action. Based on the answers provided by the Defendants in the Request for Admissions Set One attached to the motion for summary judgment, there are no affirmative defenses the Defendants could establish under the law. Therefore, the Plaintiff has established there are no triable issues of material facts and judgment for the Plaintiff is warranted in this matter. The Court awards possession of the property located at 1295 E. Lincoln Ave., #28, Anaheim, CA 92805, County of Orange. The lease is forfeited. Judgment applies to all unknown occupants, subtenants, or claimants. The Court awards monetary damages to the Plaintiff as follows: Past Due Rent: \$2,025.00 Holdover Damages: \$3,982.50 (59 days at \$67.50 a day) As to attorney's fees and costs, in determining a reasonable fee award, the Court may consider the losing party's financial circumstances and whether the award would impose an undue hardship. (<i>Garcia v. Santana</i> (2009) 174 Cal.App.4th 464, 476–477.) In this case, the Court finds that the proceedings were not particularly complex. Defendants filed a demurrer and motion to strike concurrently, thereafter filed an answer, and the matter was ultimately resolved on Plaintiff's motion for summary judgment. The litigation did not involve extensive motion practice, discovery disputes, or other circumstances warranting a substantial fee award. The Court further notes that Defendants qualified for a waiver of court fees based on their financial circumstances. In addition, the amount of attorney fees requested, standing alone, is nearly twice the Defendants' monthly rental obligation. Considering the nature of the proceedings, Defendants' financial circumstances, and the totality of the circumstances presented, the Court finds that a reasonable award of attorney's fees and costs to Plaintiff is as follows: Attorney's Fees: \$1,200 Cost: \$602.70 Total Judgment: \$7,810.20 The Plaintiff is ordered to file a judgment form reflective of the Court's orders and serve notice of entry of judgment on the Defendants.
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